

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT AT LAHORE
JUDICIAL DEPARTMENT**

Murder Reference No.71 of 2022
(The State *versus* Muhammad Tayyab)

Crl. Appeal No.24423-J of 2022
(Muhammad Imtiaz, etc. *, versus* The State, etc.)

Crl. Revision No.22970 of 2022
(Muhammad Yasin *versus* Muhammad Imtiaz, etc.)

JUDGMENT

Date of hearing: 08.09.2025.

Appellants by: M/s Saika Javed and Faseeh Ullah Khan, Advocates.

State by: Mr. Muhammad Naveed Umer Bhatti, Deputy Prosecutor General.

Complainant by: Mr. Rafi Ullah Jan, Advocate.

AALIA NEELUM, C.J.:- The appellants-Muhammad Imtiaz son of Nazeer Ahmad, Caste Butt, resident of Tazeem Colony Shahpur Saddar, Tehsil Shahpur, District Sargodha, (2) Muhammad Mumtaz Hussain alias Taji son of Nazeer Ahmad, resident of Mehria Town Shahpur Saddar, Tehsil Shahpur, District Sargodha and (3) Muhammad Tayyab son of Muhammad Saleem, Caste Khanana, resident of Mohallah Thenwala, Tehsil Shahpur, District Sargodha have assailed their convictions and sentences recorded by the learned Additional Sessions Judge, Shahpur, District Sargodha vide judgment dated 03.03.2022 in case FIR. No.22 of 2020, dated 11.01.2020, offences under sections 302, 324, 337-F(ii), 34 P.P.C., registered at the police station, Shahpur Saddar, District Sargodha, whereby the learned trial court convicted the appellants as under:-

- i) The accused, Muhammad Tayyab, was convicted under section 302(B) PPC for committing Qatl-e-Amd of Muhammad Hameed and sentenced to Death, with

the direction to pay Rs.2,00,000/- as compensation to the legal heirs of the deceased, and in default thereof, to further undergo 01-year S.I. The amount of compensation would be recovered as arrears of land revenue.

- ii) He was also convicted under section 324 PPC and sentenced to undergo 10 years R.I., along with a fine of Rs.1,00,000/- and, in case of default thereof, to further undergo, 06-months S.I.
- iii) He was further convicted under section 337-F(ii) PPC and sentenced to undergo 03 years R.I., as Tazir, along with Daman, of Rs.20,000/-.

The accused-Muhammad Mumtaz Hussain alias Taji, was convicted and sentenced as under:-

- i) The accused-Muhammad Mumtaz Hussain alias Taji, was convicted under section 302(B) PPC read with section 34 PPC and sentenced to undergo rigorous imprisonment for life as Tazir with the direction to pay Rs.2,00,000/- as compensation to the legal heirs of the deceased, and in default thereof, to further undergo 01-year S.I. The amount of compensation would be recovered as arrears of land revenue.
- ii) He was also convicted under section 324 PPC and sentenced to undergo 10 years R.I. along with a fine of Rs.1,00,000/- and, in case of default thereof, to further undergo, 06-months S.I.
- iii) He was further convicted under section 337-F(ii) PPC and sentenced to undergo 03 years R.I., as Tazir, along with Daman of Rs.20,000/-.

The accused-Muhammad Imtiaz, was convicted and sentenced as under:-

- i) The accused-Muhammad Imtiaz, was convicted under section 302(B) PPC read with section 34 PPC and sentenced to undergo rigorous imprisonment for life as Tazir with the direction to pay Rs.2,00,000/- as compensation to the legal heirs of the deceased, and in default thereof, to further undergo 01-year S.I. The amount of compensation would be recovered as arrears of land revenue.
- ii) He was also convicted under section 324 PPC and sentenced to undergo 10 years R.I. along with a fine of

Rs.1,00,000/- and, in case of default thereof, to further undergo, 06-months S.I.

- iii) He was further convicted under section 337-F(ii) PPC and sentenced to undergo 03 years R.I., as Tazir, along with Daman of Rs.20,000/-.

The sentences awarded to the appellants would run concurrently. The benefit of section 382-B Cr.P.C. was also extended to the appellants.

2. Feeling aggrieved by the trial court's judgment, Muhammad Imtiaz, Muhammad Mumtaz Hussain alias Taji, and Muhammad Tayyab, the appellants, have assailed their convictions by filing the instant appeal bearing Criminal Appeal No.24423-J of 2022. The trial court also sent **M.R. No.71 of 2022 (The State vs. Muhammad Tayyab)** to confirm the death sentence awarded to the appellant No.3, Muhammad Tayyab, whereas the complainant filed a Crl. Revision No.22970 of 2022 for enhancing the punishments of respondents No.1 to 3. All the matters arising from the same judgment of the trial court are being disposed of through a single judgment.

3. Briefly, the prosecution story as alleged in the F.I.R (Ex. PA) lodged on the complaint (Ex. PL) of Muhammad Yasin (PW-10)-the complainant is that on 11.01.2020, the complainant (PW-10) along with Muhammad Javed, Muhammad Hameed (since dead) and Muhammad Asif (PW-11) were going to their houses, whereas Muhammad Hameed (since dead) and Muhammad Asif (PW-11) were few steps ahead and when they reached in front of house of Mst. Saba Begum, at about 05:30/05:45 p.m., the accused persons, namely Muhammad Imtiaz, Muhammad Mumtaz alias Taji, and Muhammad Tayyab, armed with knives, came there. The accused persons raised lalkara of dire consequences to Muhammad Hameed (since dead) for insulting the accused, Muhammad Mumtaz alias Taji. After that, the accused, Muhammad Tayyab, gave a knife blow which hit the front of the chest of Muhammad Hameed (since deceased), whereas the accused, Muhammad Mumtaz alias Taji, inflicted a knife injury on the person of Muhammad Asif (injured PW-11), which hit the back of his right shoulder. Thereafter, the accused, Muhammad

Tayyab, gave a knife blow, which hit the back of Muhammad Asif (injured, PW-11); the accused, Muhammad Imtiaz, gave a knife blow, which hit the left thigh of Muhammad Asif (injured, PW-11). After the alleged occurrence, the accused persons fled away from the place of occurrence. The complainant (PW-10) and prosecution witnesses took the injured persons to T.H.Q. hospital, Shahpur. While en-route to the hospital, Muhammad Hameed (since dead) succumbed to the injuries. The motive behind the occurrence was that two days before the alleged occurrence, harsh words were exchanged between Muhammad Hameed (since dead) and the accused, Muhammad Mumtaz alias Taji, regarding the passing of Muhammad Hameed's goats from the street. Hence, this case.

4. After reporting the matter on the application (Ex.PL) of the complainant (PW-10), a formal FIR (Ex. PA) was chalked out by Inayat-Ullah Khan, ASI (PW-1). Thereafter, the investigation of this case was first entrusted to Muhammad Iqbal, S.I. (PW-12). After that, the investigation of this case was entrusted to Syed Abid Hussain Shah, S.I. (PW-13), who found the accused/appellants guilty, prepared a report under Section 173, Cr.P.C., while placing the names of the accused in column No.3 of the Challan, and sent the same to the court of competent jurisdiction. The trial court formally charge-sheeted the appellants on 22.09.2020, to which they pleaded not guilty and claimed trial. In support of its version, the prosecution produced as many as thirteen (13) witnesses. The appellants were also examined under Section 342 Cr.P.C., wherein they neither opted to appear as their own witnesses in terms of Section 340(2) Cr.P.C. nor produced any defence evidence. In response to a particular question of why this case was against them and why the PWs deposed against them, the appellants made the following independent depositions: -

Appellant No.1, Muhammad Imtiaz.

“The complainant had got registered this false case against me due to relationship with the deceased. The PWs had also deposed against me being close relatives and friends of the deceased. The PWs have made statements against the real facts of this case. The deceased was murdered by some unknown persons during darkness of the night. Later on,

Muhammad Asif, PW was shown as injured just to strengthen the prosecution case.”

Appellant No.2, Muhammad Mumtaz alias Taji.

“The complainant had got registered this false case against me due to relationship with the deceased. The PWs had also deposed against me being close relatives and friends of the deceased. The PWs have made statements against the real facts of this case. The deceased was murdered by some unknown persons during darkness of the night. Later on, Muhammad Asif, PW was shown as injured just to strengthen the prosecution case.”

Appellant No.3, Muhammad Tayyab.

“The complainant had got registered this false case against me due to relationship with the deceased. The PWs had also deposed against me being close relatives and friends of the deceased. The PWs have made statements against the real facts of this case. The deceased was murdered by some unknown persons during darkness of the night. Later on, Muhammad Asif, PW was shown as injured just to strengthen the prosecution case.”

5. After recording evidence and evaluating the evidence available on record, considering arguments advanced from both sides, the trial court found the prosecution's version proved beyond any shadow of reasonable doubt, which resulted in the appellants’ conviction as well as awarding of sentence to them in the afore-stated terms.

6. We have heard the arguments advanced by the learned counsel for the parties and have minutely perused the record on the file.

7. In the instant case, the occurrence took place on 11.01.2020 at 5:45 p.m. in the area of Aqil Shah, within the territorial jurisdiction of the police station, Shahpur Sadar. The inter-se distance between the place of occurrence and the police station is 1.5 kilometers. The incident was reported by Muhammad Yasin (PW-10)-the complainant, brother of Muhammad Hameed-the deceased, through his written complaint (Exh.PA) to Muhammad Iqbal S.I. (PW-12) at 6:15 p.m., at THQ Hospital, Shahpur, who referred the written

complaint (Exh.PL) to police station Shahpur Sadar, District Sargodha, through Muhammad Mubarak 2087/C (not cited as witness), on the basis whereof, formal F.I.R. (Exh.PA) was chalked out by Inayatullah Khan, A.S.I. (PW-1) on 11.01.2020 at 06:30 p.m. From the evidence of Muhammad Yasin (PW-10), the complainant, it reveals that the complainant (PW-10) straightaway went to THQ Hospital, Shahpur, for medical treatment of both the injured, i.e., Muhammad Asif and Muhammad Hameed (then injured). On reaching the hospital, Muhammad Hameed succumbed to the injuries, and Muhammad Yasin (PW-10), the complainant, reported the incident to the police at THQ Hospital, Shahpur. During cross-examination, Muhammad Yasin (PW-10)-the complainant deposed that:-

"The application Exh-PL was written by my cousin namely Muhammad Zubair at THQ Hospital, Shahpur. He is employee of Qaid-e-Aazam Law College Sargodha as a guard. The said application was written at about 06:00/06:30 pm."

According to the prosecution's case, Muhammad Hameed (the deceased), Muhammad Javed, the brother of Muhammad Yasin (PW-10)-the complainant, and Muhammad Asif (PW-11), the injured witness, were going to their house when the incident took place in front of the house of one Saba Begum. During examination-in-chief, Muhammad Yasin (PW-10)-the complainant deposed that:-

"We attended Muhammad Asif and Muhammad Hameed who were injured and shifted them to THQ Hospital, Shahpur where while reaching THQ Hospital Shahpur, Muhammad Hameed succumbed to the injuries. Police reached at the THQ Hospital, Shahpur where I submitted written application Exh-PL, which bears my thumb mark. Upon application, FIR was registered against the accused persons."

Muhammad Yasin (PW-10)-the complainant got drafted application for registration of a criminal case from his cousin, namely Muhammad Zubair. Non-mentioning of this fact in the application/complaint (Ex.PL) indicates that the complainant (PW-10) had not stated the complete truth. Muhammad Yasin

(PW-10)-the complainant has not deposed that when and how his cousin Muhammad Zubair came to know about the incident, and when he reached THQ Hospital and wrote the application (Ex.PL). Muhammad Zubair was not cited as a witness. The F.I.R. came into existence later on, after due deliberations and consultations. The author of the complaint should state that the complaint was prepared under the complainant's instructions. It is also not the case of the prosecution that the complainant (PW-10) asked his cousin, namely Muhammad Zubair, to prepare a complaint; accordingly. The complaint prepared by him was shown to the complainant, read over to him, and signed by the complainant. The Hon'ble Supreme Court of Pakistan in the case of "Allah Bachaya and another v. The State" (PLD 2008 SC 349) held that:-

"In the instant case, the FIR was not recorded at the police stations. It has been held time and again that FIRs which are not recorded at the police stations suffer from the inherent doubt that those were recorded at the spot after due deliberations."

It has been further noticed that Doctor Zain Safdar (PW-4) conducted the postmortem examination of the dead body of Muhammad Hameed on 11.01.2020 at 10:00 p.m., which shows that the postmortem examination of the dead body was conducted with a delay of three hours and thirty minutes from the time of reporting the incident to the police. Doctor Zain Safdar (PW-4) deposed during examination-in-chief that rigor mortis was developed and putrefaction was present. If the incident occurred at 5:45 p.m. on 11.01.2020, and a written complaint (Ex.PL) was submitted at 06:15 p.m. on the same day, and the postmortem examination was conducted on 11.01.2020 at 10:00 p.m., then it is strange that the prosecution did not explain the presence of rigor mortis and putrefaction within four hours and forty-five minutes. Putrefaction is the fifth stage of death, following pallor mortis, livor mortis, algor mortis, and rigor mortis. With the onset of putrefaction, rigor mortis passes off, and secondary relaxation occurs. Secondary relaxation occurs at around 36 hours after death due to the breakdown of the contracted muscles due to decomposition. Rigor mortis is the post-mortem stiffening/rigidity of the body,

which sets in within two hours from the time of death and is completed in 12 hours. In the postmortem report (Ex.PC), the Medical Officer (PW-4) on the external examination of the dead body observed as under:-

“A young looking man, lying flat on the mortuary table, with eyes and mouth closed, natural orifices were normal. Rigor mortis was developed, postmortem staining was present, putrefaction was present.”

(Underline for emphasis)

Rigor mortis lasts 24-48 hours in winter and 18-36 hours in summer. Doctor Zain Safdar (PW-4) admitted during cross-examination that he clearly observed putrefaction on the dead body of the deceased before postmortem. The incident had since taken place in the winter, the coldest month, and the post-mortem was conducted on the same day; there is no chance for the body to have started putrefaction or decomposition. It can only start after the period of rigor mortis is over; thus, medical evidence does not support the prosecution's story. It is beyond imagination that putrefaction of the dead body will start within four hours and forty-five minutes from the time of death. This alone circumstance is sufficient to discard the whole prosecution story. These circumstances, to our mind, go to suggest that the F.I.R. was antedated. This fact also gets support from the recovery memo of the last worn clothes of the deceased (Ex.PJ), memo of possession of blood collected from the place of occurrence through cotton (Ex.PM), memo of possession of a bulb (Ex. PN) wherein the name of the accused was/were not mentioned. It was written in the above-mentioned documents as "-----ت.", i.e., the space against verses was kept blank. The genuineness of the version given by Muhammad Yasin (PW-10), the complainant, becomes doubtful from the contents of the documents mentioned above.

8. It has been noticed that in the inquest report (Ex.PP), even the names of Muhammad Yasin (PW-10)-the complainant, Muhammad Javed (given up PW), and Muhammad Asif (PW-11), the injured witness, have not

been mentioned. The inquest report (Ex.PP) is not signed by any of the eyewitnesses or the complainant. It is relevant to mention here that Muhammad Asif (PW-11), the injured witness till then, was not medically examined, as his arrival time for medical examination is mentioned in the column of the medico-legal certificate (Ex.PK) at 06:50 p.m. on 11.01.2020. Whereas Muhammad Iqbal S.I. (PW-12), investigating officer, prepared the inquest report (Ex.PP) at 5:45 p.m. as mentioned in column No.3 of the time and date of receiving information of the death of the deceased. Muhammad Iqbal S.I. (PW-12) incorporated police proceedings at the bottom of the written complaint (Ex.PL) at 6:15 p.m., at the THQ Hospital, Shahpur, who referred the written complaint (Exh.PL) to the police station Shahpur Sadar, District Sargodha, through Muhammad Mubarak 2087/C (not cited as witness), on the basis whereof, a formal F.I.R. (Exh.PA) was chalked out by Inayatullah Khan, A.S.I. (PW-1) on 11.01.2020 at 06:30 p.m. In column No.1 of the inquest report (Ex.PP), it is mentioned that the dead body was recovered in the area of Aqil Shah. Muhammad Iqbal S.I. (PW-12) deposed during examination-in-chief that on receiving information of the occurrence, he reached THQ Hospital, Shahpur, and received a written complaint (Ex.PL). Thereafter, he (PW-12) inspected the dead body and prepared the inquest report (Ex.PP). If Muhammad Iqbal S.I. (PW-12), investigating officer visited and prepared inquest report (Ex.PP) and had actually met with Muhammad Yasin (PW-10)-the complainant, Muhammad Javed (given up PW), and Muhammad Asif (PW-11), the injured witness, there is no reason why the details which we have found missing from the inquest report (Ex.PP) should not have been there. The absence of those details is indicative of the fact that the prosecution's story was still in the embryo and had not been given any shape, and that the FIR was recorded later on, after due deliberations and consultations, and was then antedated to give it the color of a promptly lodged FIR. Even at the end of the column of a brief history of the inquest report (Ex.PP), it revealed that particulars of the FIR were mentioned, and the dead body was referred to THQ Hospital Shahpur for postmortem. The inquest report (Ex.PP) was prepared at 05:45 p.m. on 11.01.2020. At the same time, the details

of the FIR were mentioned at the end of the brief history column. Whereas FIR was registered at 6:30 p.m., Muhammad Iqbal, S.I. (PW-12), the investigating officer, testified that after recording police proceedings on written complaint (Ex.PL) at 6:15 p.m., he referred the written complaint (Exh.PL) to police station Shahpur Sadar, District Sargodha, through Muhammad Mubarak 2087/C (not cited as witness), on the basis whereof, a formal F.I.R. (Exh.PA) was chalked out by Inayatullah Khan, A.S.I. (PW-1) on 11.01.2020 at 06:30 p.m. When the inquest report (Ex.PP) was prepared, the FIR had not been registered, and its details were not written on its face. However, at the end of the brief history column, the details of the FIR are mentioned. It creates doubt about the registration of the FIR. Considering all these facts, we have no hesitation in concluding that the prosecution has not been able to prove on record that the incident was reported at the time at which it was claimed to have been recorded. Thus, in view of the above circumstances, the question of their being truthful witnesses become highly doubtful.

9. There is another aspect of the case, which also throws a cloud of doubt into the prosecution case. Muhammad Asif (PW-11), the injured witness, deposed during examination-in-chief that after the incident, he (PW-11) and Muhammad Hameed (then injured) were shifted to THQ Hospital, Shahpur, by the witnesses, i.e., Muhammad Yasin (PW-10), the complainant, and Muhammad Javed (given up PW). As stated above, at the cost of repetition, Muhammad Asif (PW-11) stated during his cross-examination that, after one and a half hours of the occurrence, the police also reached the spot where the occurrence took place. It reveals that Muhammad Asif (PW-11), the injured witness, was either shifted to THQ Hospital after the occurrence or remained at the place of occurrence. However, it is not the case of the prosecution that Muhammad Asif (PW-11), the injured PW, changed his clothes. Dr. Ahmad Bilal M.O (PW-8), who conducted a medical examination of Muhammad Asif (PW-11) on 11.01.2020 at 07:00 p.m., deposed during examination-in-chief that on examination of clothes, “no corresponding holes of injuries were present on

clothes.” As per the description of injuries, Muhammad Asif (PW-11) received the following injuries:-

1. An incised wound of about 1.5 cm x 0.5 cm in size, on the upper back behind the right shoulder area, approximately 13 cm from the right shoulder joint, was muscle deep. Bone was not exposed.
2. An incised wound of about 2 cm x 0.5 cm in size, on upper back behind right shoulder area approximately 10 cm from right shoulder joint wound was muscle deep. Bone was not exposed.
3. An incised wound of about 3 cm x 1 cm in size, on lower back, approximately 13 cm from left anterior superior iliac spine. Wound was muscle deep. Bone was not exposed.
4. An incised wound of about 4 cm x 1 cm in size, on back of left leg thigh, approximately 16 cm above from left knee joint. Wound was muscle deep. Bone was not exposed.

Admittedly, at the time of the incident, Muhammad Asif (PW-11) was wearing a Shalwar Qameez, which was not mud-stained or blood-stained as per the deposition of Dr. Ahmad Bilal M.O. (PW-8) and MLC. Shalwar Qameez covered all the parts of the body on which Muhammad Asif (PW-11) received an incised wound, the description of which has been given above. The nature of all the injuries was muscle deep and were declared as Ghyr-Jaifah-Badiha. Strangely, Muhammad Asif (PW-11) received muscle deep injuries, and he remained at the site for one and a half hours waiting for help. Muhammad Asif (PW-11), the injured, who received injuries during the incident, has not come forward with genuine facts and has concealed the incident's true nature. Even now, it is a well-settled principle of law that medical evidence only indicates receipt of injuries, the kind of weapon used, and the nature of injuries, but it does not name the assailant. Reliance is placed on “**Muhammad Tasaweer v. Hafiz Zulkarnain and two others**” (PLD 2009 SC 53) and “**Mursal Kazmi alias Qamar Shah and another v. The State**” (2009 SCMR 1410). The Hon’ble Supreme Court of Pakistan in the case titled “**Amin Ali and another v. The State**” (2011 SCMR 323) held that:

“Certainly, the presence of the injured witnesses cannot be doubted at the place of incident, but the question is as to whether they are truthful witnesses or otherwise, because merely the injuries on the persons of P.Ws. would not stamp them truthful witnesses.”

The Hon’ble Supreme Court of Pakistan in the case reported as **“Muhammad Pervez and others v. The State and others”** (2007 SCMR 670) held that,

“It is also a settled law that injuries on a P.W. only indiction of his presence at the spot but is not informative prove of his credibility and truth.”

Looking at these facts, we believe that the prosecution has withheld the true genesis of the occurrence.

10. The motive set up by the prosecution in the application (Ex.PL) and F.I.R. (Ex.PA) and deposition about it by Muhammad Yasin (PW-10), the complainant, has been found by this court to have remained unproven. The prosecution's case in this regard was vague and could hardly inspire confidence. Muhammad Yasin (PW-10)-the complainant, deposed during cross-examination that:-

"I had not mentioned any witness of the previous altercation between the deceased and accused Mumtaz in my application Exh-PL."

Muhammad Iqbal S.I. (PW-12), investigating officer, deposed during cross-examination that:-

"I had not recorded any statement of any witness of previous altercation which described as motive. No person appeared before me as witness of the motive occurrence."

Therefore, the evidence led by the prosecution in connection with motive is not sufficient for placing reliance on the testimonies of the witnesses. Now it is a trite law that enmity is a double-edged weapon. The existence of a motive on the part of the accused may be a reason for committing the crime, yet the Court has to be cognizant of the fact that this may, in a given case, lead to

false implication of the appellant. Motive is a double-edged weapon, capable of both causing and falsely implicating. There are always different motives that operate in the mind of a person in making a false accusation.

11. As far as recoveries of the weapon of offences, i.e., blood-stained knife (P-2) on the pointing of Muhammad Imtiaz (appellant No.1), blood-stained knife (P-4) on the pointing of Muhammad Mumtaz Hussain alias Taji (the appellant No.2), blood-stained knife (P-3) on the pointing of Muhammad Tayyab (the appellant No.3), on 14.02.2020 and positive report of Punjab Forensic Science Agency (Ex.PW) are concerned, as per the prosecution case, on 09.02.2020, the appellants, Muhammad Imtiaz, Muhammad Mumtaz Hussain alias Taji and Muhammad Tayyab were arrested. Syed Abid Hussain Shah S.I (PW-13)-the investigating officer, on 14.02.2020, recovered the weapon of offences, i.e., blood-stained knife (P-2) on the pointing of Muhammad Imtiaz (appellant No.1), blood-stained knife (P-4) on the pointing of Muhammad Mumtaz Hussain alias Taji (the appellant No.2), blood-stained knife (P-3) on the pointing of Muhammad Tayyab (the appellant No.3), which were taken into possession through the sealed parcels and same were deposited with the office of Punjab Forensic Science Agency. Per the Punjab Forensic Science Agency report (Ex.PH), human blood was identified on items # 2.1, 3.1, and 4.1, i.e., “knives recovered from the appellants.” Although the evidence relating to the recovery of blood-stained “knives” is in line, we noted that the recovered knives were analyzed on 09.03.2020, fifty-eight days after the occurrence. It was not possible to determine the origin of the blood on “knives”, as blood disintegrated after one month of the occurrence, and in this regard, the case of **“FAISAL MEHMOOD. Vs. THE STATE” (2017 Cr.LJ 1)** can be referred, to, and a relevant portion from the same is reproduced hereunder:-

“It was scientifically impossible to detect the origin of the blood after about two years of the occurrence because human blood disintegrates in a period of about three weeks.”

Besides, the Punjab Forensic Science Agency Report (Ex.PW) reveals that: -

“Property of this case has been released to Nadeem Iqbal (ASI) on January 17, 2020 and to Syed Abid Hussain Shah (SI) on February 21, 2020.”

The swabs taken from the blades of knives (P-2 to P-4) were examined on March 09, 2020. If the property in the instant case was released to Syed Abid Hussain Shah S.I. (PW-13) on 21.02.2020, then which case property was analyzed by the Analyst on March 09, 2020, raises doubts about the report of Punjab Forensic Science Agency, Lahore (Ex. PW). Syed Abid Hussain Shah S.I (PW-13)-investigating officer deposed during examination-in-chief that: -

“On 20.02.2020, Moharrar handed over to me three sealed parcels for onward transmission to the office of PFSA, Lahore intact and I deposited the same to the said office on 21.02.2020. On the same day, I recorded the statement of Moharrar u/s 161 Cr.P.C. in this regard.”

The entire prosecution's evidence is silent on this aspect of the case. Thus, there was no link evidence to prove that the knives (P-2 to P-4) recovered from the accused were again received back from Syed Abid Hussain Shah S.I. (PW-13)-the investigating officer on 21.02.2020, by the moharrar, and the same was re-deposited in the Malkhana or handed over to the Moharrar. It is necessary that, when case property is removed from Malkhana, a corresponding entry is made in the Malkhana Register, and again when it is re-deposited. Case property in murder cases must be kept in safe custody from the date of seizure till its production in the Court. It is also necessary that when case property is re-deposited in the Malkhana, an entry in the Malkhana Register must be made. A dire necessity has been cast upon the prosecution to produce in Court the abstract of the Malkhana Register for ensuring, dispelling, any aura of skepticism seeping into the prosecution case, especially vis-a-vis safe custody of the case property, "being," re-deposited in the Malkhana. Thus, it casts doubt on whether the recovered case property was the same one sent to the Forensic Science Laboratory, or it related to a different case. The prosecution has failed to prove the case against the accused. Pointing out the above deposition of witnesses reveals that the prosecution did not prove that the case properties (P-2

to P-4) were kept in safe custody. Due to the lack of this evidence, it cannot be held that the alleged recovered “knives” (P-2 to P-4) were re-deposited in Malkhana, and their benefit will go to the accused. Therefore, there is an absolute glaring contradiction in the testimony of the prosecution witnesses, and this vital contradiction remains unexplained. The case property produced in the court could not be related to the case property seized from the appellants’ possession. There is, thus, no evidence to connect the Punjab Forensic Science Agency, Lahore (Ex. PW), with the knives (P-2 to P-4). All these circumstances taken together only deepen the shadows of doubt cast upon the case of prosecution. Besides, it does not appeal to reason that the accused might have kept blood-stained knives (P-2 to P-4) with them in their house intact to produce them before the Investigating Officer on their arrest. The accused cannot be expected to keep the blood-stained knives (P-2 to P-4) in their house for a long period when they could have easily disposed of them. Similarly, the report of the Punjab Forensic Science Agency (Ex.PX) relating to blood-stained cotton taken into possession from the place of occurrence reveals that the case property was released to Nadeem Iqbal A.S.I (PW-6) on 17.01.2020, while the property was analyzed on 27.01.2020. If the property in the instant case was released to Nadeem Iqbal A.S.I (PW-6) on 17.01.2020, then which case property was analyzed by the Analyst on 27.01.2020? This raises doubts about the report of the Punjab Forensic Science Agency, Lahore (Ex. PX). So far as the recovery of motorcycle (P-1) on the pointing of Muhammad Imtiaz (the appellant No.1) on 13.02.2020 is concerned, Muhammad Yasin (PW-10)-the complainant admitted during cross-examination that he has not given the registration number and the other details of the motorcycle to the police. In these circumstances, the recoveries and positive reports are not of any consequence.

12. All the above-narrated facts and circumstances lead this Court to only one conclusion: the whole prosecution case seems to be hinging upon conjectures and surmises and has severely failed to show incriminating, corroborative/independent evidence to bring home the guilt of the accused in the case of a capital charge. The learned trial court was unjustified in convicting the

appellants while relying on untrustworthy, unsubstantiated evidence. The conviction passed by the learned trial court in the circumstances is against all canons of law recognized for dispensing criminal justice. Per the dictates of the law, the benefit of every doubt will be extended in favor of the accused. In the case of “**Muhammad Akram v. The State**” (2009 SCMR 230), it has been held as under: -

“The nutshell of the whole discussion is that the prosecution case is not free from doubt. It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favor of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

13. The upshot of the above discussion is that the prosecution had severely failed to bring home a charge against the appellants beyond any reasonable doubt; therefore, in the interest of the safe administration of Criminal Justice, Crl. Appeal No.24423-J of 2022 filed by Muhammad Imtiaz, Muhammad Mumtaz Hussain alias Taji, and Muhammad Tayyab, the appellants, is **accepted in toto**. The sentence awarded by the learned Additional Sessions Judge, Shahpur, District Sargodha, vide judgment dated 03.03.2022, is **set aside**. The appellants are acquitted of the charge in case F.I.R. No.22 of 2020, dated 11.01.2020, registered under Sections 302, 324, 337-F(ii), 34 P.P.C., at P.S. Shahpur Saddar, District Sargodha. The appellants, Muhammad Imtiaz, Muhammad Mumtaz Hussain alias Taji, and Muhammad Tayyab, are ordered to be **released forthwith** if not required in any other case. **Murder Reference No.71 of 2022**, forwarded by the trial court for confirmation of the death sentence inflicted upon the convict-Muhammad Tayyab, fails, which is answered in

NEGATIVE and death sentence awarded to the convict-Muhammad Tayyab is not confirmed.

14. So far as **Criminal Revision No.22970 of 2022** filed by the complainant, for enhancement of conviction and sentence of the respondent Nos . 1 to 3 awarded by the trial court is concerned, for the reasons aforesated, the same is devoid of any legal force, which is accordingly dismissed.

(Abher Gul Khan)
Judge

(Aalia Neelum)
Chief Justice

Approved for reporting

Judge

Chief Justice

*This judgment has been
dictated, pronounced on
08.09.2025, and signed
after its completion on
19.09.2025.*

*Ikram**